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Tentative Ruling

Re: **Coronado v. FCA US, LLC**
Superior Court Case No. 22CECG00190

Hearing Date: May 28, 2026 (Dept. 403)

Motion: by Plaintiff for Attorney Fees

Tentative Ruling:

To deny as untimely.

Explanation:

Plaintiff Keri Coronado moves for an award of attorney fees as the prevailing buyer under Civil Code section 1794, subdivision (d). Plaintiff submits an executed Offer to Compromise pursuant to Code of Civil Procedure section 998 authorizing plaintiff to seek fees and costs from defendant FCA US, LLC by noticed motion in the event the parties are unable to resolve attorney's fees and costs. The Offer to Compromise was executed on October 3, 2023. (Baker Decl., Ex. 3.)

Defendant opposes the motion on the basis that it is not timely under California Rules of Court, rule 3.1702(b)(1). Rule 3.1702(b)(1) states in pertinent part, "[a] notice of motion to claim attorney's fees for services up to and including the rendition of judgment in the trial court ... must be served and filed within the time for filing a notice of appeal under rules 8.104 and 8.108 in an unlimited civil case" (Cal. Rules of Court, rule 3.1702(b)(1).) The time for filing a notice of appeal is the earlier of 60 days after service of notice of entry of judgment or 180 days after entry of judgment. (*Id.*, rule 8.104(a)(1).) A voluntary dismissal, although not appealable, is effectively a judgment and the time for filing a motion for attorney fees commences upon entry of judgment. (*Sanabria v. Embrey* (2001) 92 Cal.App.4th 422, 427.) Thus, the time to bring a motion for attorney fees commenced upon the entry of dismissal of the case at bench on July 9, 2024.

Defendant requests judicial notice of a recent decision from the Fourth District Court of Appeal, *Hatlevig v. General Motors, LLC* (2026) 118 Cal.App.5th 644 (*Hatlevig*). The request is granted. In *Hatlevig*, the parties to a Song Beverly action reached a settlement and advised the court of the same at a trial readiness conference. (*Id.*, at p. 646.) The court ordered a dismissal filed within 45 days. (*Ibid.*) Following the passage of 45 days the court generated a "Notice of Dismissal by Court" giving notice to the parties that the case would be deemed dismissed without prejudice on August 15, 2023 unless a judgment or dismissal was filed or a party appeared ex parte to show good cause why the case should not be dismissed. (*Id.*, at pp. 646-647.) Neither event occurred. (*Id.* at p. 647.) After the passage of the date to respond, plaintiff filed a motion for attorney fees and did not serve the motion until April 2, 2024. (*Ibid.*) General Motors, LLC opposed the motion as untimely as it had not been served within 180 days of the date of settlement pursuant to California Rules of Court, rule 3.1702(b)(1). (*Ibid.*) The court rejected plaintiff's argument that there had been no dismissal and the deadline to file the fee motion was

never triggered. (*Ibid.*) The Fourth District affirmed the order denying the motion for attorney fees as untimely based on the voluntary dismissal of the case entered on August 15, 2023. (*Id.* at p. 650.)

Here, the parties stipulated to dismiss the action and for the court to retain jurisdiction to enforce the settlement pursuant to Code of Civil Procedure section 664.6. The order on the stipulation and dismissal was entered on July 9, 2024. (Cronin Decl., ¶ 8, Ex. 6.) The parties' voluntary dismissal of the action "starts the clock running on the time to move for attorney fees when the dismissal concludes the litigation and triggers a right to fees." (*Hatlevig, supra*, 118 Cal.App.5th at p. 649.) The motion at bench was filed December 22, 2025, 531 days after the dismissal and well past the 180 day time for filing a motion for attorney fees. (Cal. Rule of Court, rule 3.1702 (b)(1).)

Plaintiff makes similar arguments as were raised in *Hatlevig*. The assertion that there has been no dismissal or judgment is contradicted by the parties' stipulated dismissal. Plaintiff's argument that the court's retention of jurisdiction to enforce the settlement renders the filing timely is without authority and unpersuasive. If this were the case, any settlement accompanied by a stipulation for the court to retain jurisdiction pursuant to Code of Civil Procedure section 664.6 would effectively extend a prevailing parties' time to file for attorney's fees indefinitely. The Rules of Court allow parties to stipulate to extend the time an additional 60 days but there is no evidence of such a stipulation and the motion would remain untimely.

Plaintiff's motion for attorney fees is untimely pursuant to Rule 3.1702(b)(1) of the California Rules of Court following the voluntary dismissal of the action on July 9, 2024. Accordingly, the motion is denied.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: Img **on** 5-26-26.
(Judge's initials) (Date)